

Court No. - 40

Case :- WRIT - C No. - 10364 of 2025

Petitioner :- Sagufta Ishrar

Respondent :- Purvanchal Vidhut Virtana Nigam Ltd And Another

Counsel for Petitioner :- Arun Mishra, Vijay Pratap Singh

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Shekhar B. Saraf, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

1. Heard learned counsel appearing on behalf of the petitioner and Sri N.K. Tiwari, learned counsel appearing on behalf of the respondents.

2. This is a writ petition under Article 226 of the Constitution of India wherein the writ petitioner has prayed for the following relief:

"Issue a writ of Mandamus commanding respondent No.2 to finalize the permanent disconnection of the petitioner since the date of temporary disconnection giving benefit of Clause 4.38 of U.P. Electricity Supply Code, 2005."

3. Counsel appearing on behalf of the respondents submits that to finalise the bill, the petitioner is required to be present on the spot. He further submits that on the previous date fixed, none was present on behalf of the petitioner.

4. In light of the above, the respondents are directed to go to the residence of the petitioner on April 15, 2025. The petitioner should be present at the residence on the said date and assist the respondents in checking the meter. Once the same is done, the respondents are directed to inform the petitioner about the pending dues and upon pending dues being paid by the petitioner within a period of three weeks from the date of knowledge of the dues, the respondents authority shall permanently disconnect the electricity line of the petitioner.

5. With the aforesaid directions, the writ petition is disposed of.

Order Date :- 9.4.2025

Kuldeep

(Dr. Y. K. Srivastava, J.) (Shekhar B. Saraf, J.)